CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
January 14, 2009
7:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, Florida 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. on Wednesday, January 14, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes, Commissioner Dorothy Johnson and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, Assistant City Attorney Roget Bryan and City Clerk Deborah S. Irby. City Attorney Burnadette Norris-Weeks was not in attendance.

3. INVOCATION:

The Invocation was delivered by Commissioner Rose Tydus.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

Clerk Irby advised of the request to amend the agenda to include the following resolution under news items (item 12-1):

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE SETTLEMENT AGREEMENT IN THE MATTER OF ROBERTO LEAL VS. CITY OF OPA-LOCKA AND AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO ROBERTO LEAL IN THE AMOUNT OF THREE THOUSAND FIVE HUNDRED DOLLARS ($3,500.00), PAYABLE FROM ACCOUNT NO. 21-521140 AS FULL AND FINAL SETTLEMENT OF ALL CLAIMS AGAINST THE CITY OF OPA-LOCKA; FURTHER

AUTHORIZING PAYMENT OF TWO THOUSAND FOUR HUNDRED DOLLARS ($2,400.00) ON BEHALF OF ROBERTO LEAL, TO EDDY O. MARBAN, ESQ. FOR ATTORNEY FEES AND COSTS, PAYABLE FROM ACCOUNT NUMBER 28-514390. *Sponsored by C.M.*

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to amend the agenda to include item 12-1.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

In view of the fact that Commissioner Tydus was going to leave early due to a prior engagement, she requested to move item 14B1 (second reading ordinance/public hearing) under Action Items (agenda item 11-1).

It was moved by Commissioner Tydus, seconded by Commissioner Johnson to move agenda item 14B1 under agenda item 11 – Action Items.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Commissioner Johnson pulled item 15-4 and Mayor Kelley pulled item 15-1 from the Consent Agenda for discussion.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes

Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGMENTS:

8. APPROVAL OF MINTUES:

Regular Commission Meeting – December 10, 2008
Special Commission Meeting – December 18, 2008

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of December 10, 2008 and the Special Commission Meeting of December 18, 2008.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

9. DISTRICT ONE – COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant to Commissioner Barbara Jordan, District 1 County Commissioner came forward and briefly updated the Commission on several items including the beautification and rehab projects; the request relating to the Magnolia North homes which is in the hands of US HUD; and information regarding the Tot Lot of which he is currently waiting on as to whether that would be converted to the city.

10. PUBLIC PRESENTATION:

1. City's Beautification Video - presentation highlighting the city's beautification and landscaping enhancements.

10a. CITIZENS' FORUM:

1. Carmen Felipe of 1210 Wilmington Street, Opa-locka, Florida, came forward and expressed her concerns relating to the murder investigation of her son in May 2008 in Opa-locka; crime in the city; lack of street lighting; bars allowed to remain open until the early morning; illegal gambling machines; illegal drug activity throughout the city; police visibility at night; drinking at and around liquor stores specifically NW 27th Avenue and York Street; drug addicts in the city; and the illegal dumping of trash. She provided a flyer seeking homicide information in her son's case.

She further requested assistance in getting information about her son's murder investigation.

Mayor Kelley expressed his sympathy and directed the City Manager to make sure someone speaks to Mrs. Felipe's about her concerns especially the ones dealing with police.

Commissioner Johnson expressed her concerns relating to the bars remaining open until the morning hours and requested a report by Monday, January 19, 2009.

After meeting with Mrs. Felipe in his office and placing a telephone call downtown for an update on her son's homicide investigation, Commissioner Holmes stated that he didn't receive a call back so he asked that she come before the Commission to express her concerns. He said he was hoping staff from the Police Department could get the information and follow up with Miami-Dade Homicide Detectives for a status on the case.

In situations as such where the city doesn't necessarily handle all investigations, Mayor Kelley suggested there be a communication link between the city's departments and the county when handling investigations.

Dan Whu, Miami-Dade County Fire Rescue Division Chief came forward to address any concerns.

Commissioner Johnson asked, does Miami-Dade Fire Rescue have any campaigns in the month of February for taking blood pressure?

Mr. Whu indicated that he would have to check with Media Relations for any department sponsored events; however, Miami-Dade Fire Rescue will be happy to participate in the city's initiative.

Commissioner Johnson provided Mr. Whu with the date of February 16, 2009 to provide blood pressure screening during the President Elect Barack Obama's Streetnaming Dedication Ceremony. She further requested that Mr. Whu provide his contact information and she will get with him on the details.

Vice Mayor Taylor asked, is Miami-Dade Fire Rescue continuing with the blood pressure screening at the fire stations?

Mr. Whu replied, yes. Miami-Dade Fire Rescue has provided blood pressure screening at the stations for many years.

He further stated that the Fire Department would be sending a unit to participate in the city's MLK walk on Saturday, January 17, 2009.

11. ACTION ITEMS:

14B1: AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 2, ARTICLE 1.5 (SECTION 2.9 THROUGH 2.18) OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "CODE OF ETHICS; CONFLICT OF INTEREST"; REPEALING AND REPLACING SECTIONS 2.9 THROUGH 2.18 OF ARTICLE 1.5; PROVIDING FOR ADOPTION OF A CODE OF ETHICS FOR PUBLIC OFFICERS; PROVIDING FOR APPLICABILITY AND DEFINITIONS; PROVIDING FOR STANDARDS OF CONDUCT; PROVIDING FOR ORIENTATION OF PUBLIC OFFICIALS; PROVIDING FOR REPORTING AND PROHIBITED RECEIPT OF GIFTS; PROVIDING FOR VOTING CONFLICTS; PROVIDING FOR FINANCIAL DISCLOSURE; PROVIDING FOR ENFORCEMENT; PROVIDING FOR LOBBYING; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on October 22, 2008). *Co-sponsored by Commissioner Tydus and Commissioner Johnson.*

The above ordinance was read by title by Attorney Bryan.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Tydus, seconded by Commissioner Johnson to adopt the above ordinance.

Commissioner Johnson asked, does this ordinance bring the city into compliance with Florida Statutes?

Attorney Bryan replied, that is correct with specific provisions. As a point of information, he stated that the Commission was provided with a memorandum dated January 13, 2009 which replaces and updates the one currently in the commission packet dated January 7, 2009. If it is the will of the Commission upon reviewing the memorandum and moving for the passage of the ordinance, he suggested that a motion be made incorporating the suggestions in the revised memorandum.

For clarification, Mayor Kelley asked, does the Commission have to amend the motion and then go back to the original motion?

Once the motion is amended, Attorney Bryan stated, then that would be the motion on the floor. Presently there is a motion on the floor and the Commission could have a friendly amendment by the make of the motion or the Commission could withdraw it entirely and remake the motion.

Commissioner Johnson withdrew her seconded and Commissioner Tydus withdrew her motion on the above ordinance.

It was moved by Commissioner Johnson, seconded Commissioner Tydus to adopt the above ordinance incorporating the suggestions in the January 13, 2009 memorandum.

Vice Mayor Taylor requested further information as to the purpose of this ordinance and asked if this ordinance was brought forth because the city was not in compliance with the county and state?

Attorney Bryan stated that this is one of the items that came out of the workshop held before the Commission and one of the major concerns was to bring the city's code into compliance.

Vice Mayor Taylor continued to asked, are the additional changes in the memorandum to comply with Florida Statutes.

Attorney Bryan replied, yes. He said he would go through and highlight the specific changes for the record as necessary. The additional changes are to make sure the code is in compliance with what is presently in Florida Statutes.

For the record, Commissioner Johnson said she didn't think Florida Statutes can put a price on the city as to what the cost is for lobbyist registration. The recommended fee is $300.00 because the old fee of $25.00 was antiquated. However, many of the changes would bring the code in compliance with Florida Statutes.

Commissioner Holmes stated that this ordinance was not necessary and he didn't see how the Commission could come back now and amend the ordinance in second reading to include language that wasn't in the first reading.

After hearing the dialogue, Commissioner Johnson suggested that the Commission stick to the original ordinance because she would like the public to be involved and have discussion relating to the additional changes.

In his discussion with the City Manager regarding the fee, Mayor Kelley stated that in the original motion the recommendation was $100.00. In looking at the comparisons from other cities that amount was lower and that is why the fee was increased. He recommended moving forward with the ordinance including the $100.00 fee and coming back later for an additional increase in order to not hold up the legislation.

Vice Mayor Taylor asked, is this entire ordinance to comply with Florida Statutes?

Attorney Bryan advised that there are several sections of the code being addressed in this ordinance. The city must make sure the code is in compliance at least up to the level of Florida Statutes. Specifically with amendment "W" in the memorandum, there is currently no provisions in the code for that but it is in Florida Statutes.

As it relates to proposed revisions to Section 2-18 of the Code, Vice Mayor Taylor asked, is that in Florida Statutes?

Attorney Bryan stated that Section 2-18 is in the code and the only thing being amended is the amount charged for lobbying fee and Florida Statutes doesn't necessarily set that limit. He further stated that the final proposed revision which deals with the definition for "public officer" is in compliance with Florida Statutes.

In view of the fact that the administration did conduct a comparative study of lobbyist fees with other municipalities and is recommending the increase to $300.00, Commissioner Tydus said she'd like to hear from the administration as to how they reached the $300.00 amount.

Manager Finnie reported that he'd asked staff to look at the fees across the board in Miami-Dade County with fees that ranged from $25.00 in Opa-locka to an excess of $400.00 in the City of Miami and the county. In looking at the amount of projects the city has on board and the nature of the projects, staff recommended a mid range of $300.00 which appears to be a fair number. To use a number such as staff is recommending tends to attract serious people as oppose to attracting folks who can pay $25.00 and the next thing you know they're a lobbyist.

Commissioner Tydus stated that the recommended fee does tend to weed out those that are serious and those that are not.

The real concern, Mayor Kelley stated was adjusting the fee from $100.00 as listed and going with the $300.00 being recommended and whether those revisions could be done in this setting.

Attorney Bryan advised that the Commission could certainly make those revisions; this is a second reading/public hearing and even though the public hearing is closed and the Commission had some concerns they are well within their discretion to open it up for public hearing if they so desire.

Commissioner Tydus withdrew her seconded and Commissioner Johnson withdrew her motion to re-open the public hearing on the above ordinance with the proposed changes.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to adopt the above ordinance incorporating the suggestions in the memorandum dated January 13, 2009.

Attorney Bryan read into the record the proposed revisions to the above ordinance.

There being no further discussion, the motion passed by a 4-1 vote.

Vice Mayor Taylor Yes

Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

Commissioner Tydus left the meeting at 7:55 p.m.

15-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO FORMER CITY MANAGER JANNIE R. BEVERLY IN THE AMOUNT OF NINETY FOUR THOUSAND THREE HUNDRED SIXTY-ONE DOLLARS AND THIRTEEN CENTS ($94,361.13), PAYABLE FROM ACCOUNT NUMBER 12-512110; FURTHER AUTHORIZING PAYMENT OF THIRTEEN THOUSAND THREE HUNDRED FIFTY-ONE DOLLARS AND FIFTY-FOUR CENTS ($13,351.54) ON BEHALF OF JANNIE R. BEVERLY TO THE STATE FRS AND THIRD PARTY PROVIDER FOR RETIREMENT AND DEFERRED COMPENSATION BENEFITS, PAYABLE FROM ACCOUNT NUMBER 12-512220; AND AUTHORIZING PAYMENT OF TEN THOUSAND SEVEN HUNDRED TWELVE DOLLARS AND FIFTY-TWO CENTS ($10,712.52) ON BEHALF OF JANNIE R. BEVERLY, TO THIRD PARTY PROVIDERS FOR INSURANCE BENEFITS, PAYABLE FROM ACCOUNT NUMBER 12-512230. *Sponsored by T.H.*

The above resolution was read by title by Attorney Bryan.

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above resolution.

Mayor Kelley passed the gavel to Vice Mayor Taylor.

Mayor Kelley asked for an explanation as to why this resolution provides for payment to the former City Manager for a year's salary when the contract doesn't provide for payment when the individual resigns.

Commissioner Holmes explained that he is not going on the contract but the reason the former City Manager is being compensated for 12 months is because she was the City Manager in this city for the past 6 years and she did an excellent job to move this city in a new positive direction. In his opinion, the former City Manager deserves more than 6 months pay and that's the reason he included the 12 months in the resolution.

Mayor Kelley stated that when a person resigns and of course he takes nothing away from what the previous manager did with stepping in and doing a marvelous job; but he can't see how the Commission is going to pay somebody a year's salary when they resigned. The contract provides for a 30 day notice with the resignation and they didn't even get 30 days on that before the new Interim City Manager took over. He disagreed to paying a year's salary of over $120,000.00 to the former City Manager who resigned.

He questioned where the money would come from to pay the former City Manager's salary for a year because the city doesn't have that kind of money to pay two City Managers salary.

Manager Finnie stated that the money would have to come from the General Fund.

Mayor Kelley expressed his concerns relating to taking the money from the General Fund and further disagreed to paying two City Managers salaries for a year because in reading the minutes, the current Interim City Manager's basically has a year's contract. If the Commission wanted to do something and give the former City Manager a month's salary just as a going away present then that's fine but even that's not provided for in the contract.

He further stated that the city didn't have that kind of money to pay two City Managers for a year even if it is coming out of the General Fund.

Commissioner Johnson asked the sponsor to defer the resolution and go back and look at the figures. Based on what Mayor Kelley stated, she asked, what type of contract does the Interim City Manager have?

In reviewing the minutes of the December 10, 2008 commission meeting, Mayor Kelley said the statement was made by the Vice Mayor to come back in twelve months and review; basically that's a contract if the Commission is going to review in twelve months not prior to that. From what he read, the Commission basically has given the Interim City Manager twelve months and that to him amounts to a contract.

Commissioner Johnson indicated that she'd been talking about evaluations for the appointed officials for the longest but since there's not a signed contract then the Interim City Manager is an at-will employee.

Commissioner Holmes communicated his purpose for the resolution and requested that his colleagues support it. He further expressed his concerns relating to the City Attorney's salary of $360,000.00 and the provision in the resolution providing for a salary increase and contract after six months.

Mayor Kelley advised that the Commission passed $200,000.00 for the City Attorney; the other money is included in the budget for lawsuits, etc. This Commission passed it, and he was the one that didn't go along with letting it go for a year and come back in six months which the Commission can do. If it doesn't come back in six months, it can be reduced to a written contract but that's neither here nor there because it's not about the attorney.

He continued by saying to the Commission that he doesn't see how this city could afford to pay two City Managers for a year. He said he was corrected in a sense that it is not a contract but he is looking at the December 10, 2008 minutes and Vice Mayor Taylor was clear in saying the Commission was going to come back and evaluate in 12 months and

that it is not a contract. He stated that he saw and understood the language but in looking right at it, it's still a contract because what is being said is that the Commission is not coming back to review his performance until 12 months.

He further stated that it is up to the will of the Commission to give the former City Manager a year's salary but he is stating as one individual that the city doesn't have the dollars to pay two City Managers.

Commissioner Johnson asked, what are the line items for the account numbers listed in the resolution?

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the account numbers are for salary and benefits. The resolution provides for insurance and deferred compensation and that's the reason for the break down into three sections.

Should the resolution pass, Manager Finnie stated that these are lump sum payments that would be due to the former City Manager.

There being no further discussion, the motion resulted in a tie vote (2-2 vote).

Commissioner Holmes	Yes
Commissioner Johnson	No
Commissioner Tydus	Not present
Mayor Kelley	No
Vice Mayor Taylor	Yes

Vice Mayor relinquished the gavel to the Mayor Kelley.

15-4: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RESCINDING RESOLUTION 07-7083 AND TERMINATING THE DEVELOPMENT AGREEMENT WITH TOWN CENTER PROPERTIES, LLC AND THE CARRIE MEEK FOUNDATION, INC., FOR THE DEVELOPMENT OF TWENTY-EIGHT (28) TOWNHOUSES AT GOLF COURSE BOULEVARD/JANN AVENUE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Bryan.

It was moved Commissioner Johnson, (Mayor Kelley passed the gavel to Vice Mayor Taylor) seconded by Mayor Kelley to pass the above resolution.

Commissioner Johnson asked, what does the city have in place of this agreement and what brought the city to this point?

Manager Finnie advised that in place of the agreement, the asset upon approval would be returned clear title back to the control of the city and it would go back into inventory. This is more of a book keeping matter. The property would be city owned that is

currently not paying taxes due to non profit / for profit structure; therefore, the city never gave up ownership to the property. The property is being retained because it is being serviced by the lift station that is at its max capacity and the city is under a non compliance issue with that lift station so development cannot proceed on that site until the lift station is expanded or replaced.

Although there's a resolution, Commissioner Johnson said there was never an agreement.

Manager Finnie agreed with Commissioner Johnson as it related to the city never having a signed agreement; but this is more housekeeping and bookkeeping matter and putting the city's documents in order. He said this is one of the most valuable pieces of property that he would like to bring back under the city's control and at some point and time make a recommendation to this Commission as to which direction to move with the property.

Commissioner Johnson requested that the City Manager provide her by the end of February with a list of all properties in which similar corrective action will be taken.

Manager Finnie agreed to provide the list of properties to the Commission and stated that a significant priority for the city is the lift stations.

Since this property is coming back to the city, Mayor Kelley requested that the City Manager make sure that property is cleaned and maintained. Due to the agreement not being executed, he asked the City Attorney if there are any legal issues.

After discussion with the City Manager, Attorney Bryan advised that they are not aware of any legal issues or challenges raised with regards to the action being taken as there was no executed development agreement. His understanding is that there was some discussion with the City Manager and the affected parties and the way the resolution is written the Commission allows the City Manager to take all necessary action to effectuate the termination of any development agreement.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes
Vice Mayor Taylor	Yes

Vice Mayor Taylor relinquished the gavel to Mayor Kelley.

12. NEW ITEMS:

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE SETTLEMENT AGREEMENT IN THE MATTER OF ROBERTO LEAL VS. CITY OF OPA-LOCKA AND AUTHORIZING

THE CITY MANAGER TO MAKE PAYMENT TO ROBERTO LEAL IN THE AMOUNT OF THREE THOUSAND FIVE HUNDRED DOLLARS ($3,500.00), PAYABLE FROM ACCOUNT NO. 21-521140 AS FULL AND FINAL SETTLEMENT OF ALL CLAIMS AGAINST THE CITY OF OPA-LOCKA; FURTHER AUTHORIZING PAYMENT OF TWO THOUAND FOUR HUNDRED DOLLARS ($2,400.00) ON BEHALF OF ROBERTO LEAL, TO EDDY O. MARBAN, ESQ. FOR ATTORNEY FEES AND COSTS, PAYABLE FROM ACCOUNT NUMBER 28-514390. *Sponsored by C.M.*

The above resolution was read by title by Attorney Bryan.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA APPROVING THE DUAL DESIGNATION OF SINBAD AVENUE FROM NW 135TH STREET TO OPA-LOCKA BOULEVARD AS "OFFICER EPHRIAM BROWN AVENUE"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

The above ordinance was read by title by Attorney Bryan.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARINGS:

C. RESOLUTION(S):

15. ADMINSTRATION:

CONSENT AGENDA:

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, URGING THE MIAMI-DADE COUNTY BOARD OF COUNTY COMMISSIONERS TO RENAME THE "OPA-LOCKA EXECUTIVE AIRPORT" THE "OPA-LOCKA – BARACK OBAMA EXECUTIVE AIRPORT" AND FURTHER DIRECTING THE CITY CLERK TO FORWARD THIS RESOLUTION TO EACH MUNICIPALITY WITHIN MIAMI-DADE COUNTY REQUESTING THE ADOPTION OF A SIMILAR RESOLUTION AND ENCOURAGING SUPPORT. *Sponsored by T.H.*

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN INTERLOCAL AGREEMENT WITH MIAMI-DADE COUNTY FOR THE CURBSIDE RECYCLING PROGRAM, EFFECTIVE OCTOBER 1, 2008 THROUGH SEPTEMBER 30, 2009 AND RENEWABLE ANNUALLY, AT A FIRST-YEAR COST OF SEVENTY FIVE THOUSAND SEVEN HUNDRED THIRTY DOLLARS ($75,730.00), PAYABLE FROM ACCOUNT NO. 34-534592. *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE ACTION OF THE CITY MANAGER IN EXPENDING AWARDED GRANT FUNDS FROM THE MIAMI SAFE NEIGHBORHOODS BOND GRANT PROGRAM IN THE AMOUNT OF SEVENTEEN THOUSAND SEVEN HUNDRED FORTY DOLLARS ($17,740.00) FOR LANDSCAPING AND IRRIGATION IMPROVEMENTS TO THE SHERBONDY PARK PAVILION PROJECT, PAYABLE FROM ACCOUNT NO. 72-572630. *Sponsored by C.M.*

The above resolutions under the Consent Agenda were read by title by Attorney Bryan.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the consent agenda resolutions.

The motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

In addition to the packet provided to the Commission from the City Manager's Office, Manager Finnie reported that as Interim City Manager for the past month his focus is to take a snapshot of where the city is from a operational standpoint, establish an operating plan which he will submit to the Commission in the form of an action plan and he expects to deliver that plan on February 7, 2009. While being involved in a number projects and looking at transactions, he spent most of his time working with staff in trying to get an understanding of how the city operates on a day to day basis.

He continued by apologizing for the issue with the water pressure which was a by product of a proactive effort to deal with the water plant and in that process they identified a leak. He expected the leak to be resolved on the following day (January 15, 2009). He said staff would be at Miami-Dade County Building Department to identify plans the city doesn't have access to; secondly, he will bring in a company to stop the water flow which would allow to identify and seal the leak.

By the direction of the Commission, he stated that he met with the owner of the building next door to evaluate and determine if there's a possibility to look at one of the scenarios of one of three he would bring back in the future. He said he had numerous meetings with owners in the city on various properties new and old.

Vice Mayor Taylor expressed her concerns relating to the amount of water the city is losing and compensation because the city has to pay for that water.

Manager Finnie stated that the water is running and the city does have to pay the county; but that water is not going into residential homes.

Vice Mayor Taylor asked, has the county been informed of the terrible leak?

Manager Finnie said there's a leak but he doesn't know that it has gotten to the point of terrible; but he would make an assessment and get back to the Commission.

Commissioner Johnson recalled paying over $200,000.00 in leakage of water to the county several years ago.

Manager Finnie stated that the leak is an underground leak and is aged.

Commissioner Johnson expressed her concerns about the audio for the commission meetings aired on OPA-TV; traffic control during peak hours and at stop signs; plan of action and timeline for the demolishing the old water plant; preparations for the Streetnaming Dedication for President-Elect Barack Obama as far as the upkeep and maintenance of the area surrounding the new pavilion at Sherbondy Park; and the timelines for priority items from the City Manager to be received at the February 7, 2009 commission meeting. She requested that the City Manager, City Attorney and City Clerk meet on the action items in order to have input and make sure the action items are executed. Additionally, she inquired about the status of the bus benches because the city is in need of additional bus benches throughout the entire city and not in just several locations. Previously, she requested a listing of all bus benches which she had not received. She further stated that she would like to see the city seal on the bus benches/shelters.

Vice Mayor Taylor asked about the possibility of getting trash containers for all residents similar to Miami-Dade County and Miami Gardens.

Manager Finnie advised that he was putting steps to make that happen but it would take a while. In one of the items just approved by this Commission, all residents will receive the blue recycling container and he will get back to them on the distribution. He said that the trash cans are in line with the Waste Management contract and usually those cans are provided by the residential waste collection contractor. Basically, trash cans come from the people who pick up the garbage and he will negotiate that in the contract. The previous contract didn't provide for those cans. He informed the Commission that a letter was sent out notifying Waste Management that the city is going out for bid. In producing the new bid documents, one of the provisions that will be in those documents is the provision for those trash cans.

As it related to the discussion on the water leakage at the Old Water Plant, Commissioner Holmes asked if the water was fresh water and whether the meter is at the water plant?

Manager Finnie stated that the meter is not at the water plant but the flow of water is being metered.

Commissioner Holmes asked, how often does the city pay Miami-Dade County for usage?

Manager Finnie replied, monthly.

If the water was leaking for six months, Commissioner Holmes stated that the issue is not that the city is going to pay for that water; they have already paid for the past six months and will continue to pay. The city must find out how much water is being wasted in order to make adjustments on the water bill being charged.

After receiving numerous complaints from residents about the water pressure, Commissioner Holmes suggested that the residents be notified of the problems with the

water. Also, he directed the City Manager to take charge of the pump stations to bring them up to par.

He further requested that the City Manager look into the possibility of providing a return envelope with the utility bill. He further requested that the City Manager work on getting the light fixed along Opa-locka Boulevard and throughout the city.

Mayor Kelley expressed his concern regarding the lack of communication to residents about the low water pressure.

As it relates to foreclosures, Mayor Kelley said the City Manager had Community Development looking into that issue and compiling the information. He asked, when would that information be available to the Commission?

The strategy for foreclosures, Manager Finnie stated, would be a part of his presentation to the Commission on February 7, 2009. He said there are approximately 50 to 60 foreclosures and he is now in the process of getting a printout of the banks holding the mortgages.

Manager Finnie stated that he was open to having that discussion before February 7, 2009.

With all of the improvements at the parks, Mayor Kelley stated that Ingram Park is in need of a playground. He asked, when would Segal Park Improvements start?

Manager Finnie said there's a land moving issue with Segal Park and he would get back to the Commission on this issue.

After hearing the concerns from Commissioner Johnson and Commissioner Holmes about lighting and the concern was also in the minutes from the December 10, 2009, Mayor Kelley asked, is there a problem with the wiring?

Manager Finnie said he was unsure of the problem but the city does have a new electrician and he is going through the process of addressing a back flow of electrical problems; however, he would provide an update via email.

Fritz Armand, Public Works Director for the City of Opa-locka came forward and stated that the replacement lights for the lights on Opa-locka Boulevard have been ordered and the in house electrician will be completing that work.

As it relates to Public Safety, Mayor Kelley received complaints in terms of whose running the police department and stated that the City Manager is in charge of the city. He said that Mr. Finnie as City Manager of the city is in charge of public safety.

B. ACCOUNTS PAYABLE:

The City Commission instructed the city to pay its bills.

During the December 10, 2008 commission meeting, Commissioner Johnson said she'd requested to receive a detailed listing of accounts being paid, how much revenue is received and what line item the funds goes into; but has yet to receive the information.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Attorney Bryan deferred for a full report at the next meeting. Briefly, he stated that the City Attorney's Office is working very closely with the Interim City Manager on a number of issues and will continue to do so.

As it relates to Sailboat Cove, Commissioner Johnson stated that the City Attorney's Office and the City Manager's Office were supposed to get together on that issue.

Manager Finnie stated that Sailboard Cove is a private transaction and may be involved in litigation; since the city is not a part of the transaction as of yet, he doesn't want to discuss it publicly.

Commissioner Johnson requested the City Attorney bring back a resolution for no contracts. She said she didn't want a contract for the City Attorney nor did she want a contract for the City Manager.

She continued by saying that by vote of this Commission there is currently no contract for the City Manager or City Attorney. As it relates to the contract for the City Attorney, the resolution says it is to be considered. She said her resolution would be clear and concise, there aren't going to be any contracts.

Commissioner Johnson said the resolution would address employees that report to the Commission and the only two right now are the City Attorney and City Manager because they don't have contracts. The City Clerk already has a contract.

Attorney Bryan said he would discuss this issue with Commissioner Johnson prior to the next meeting. As he understood it, the resolution would apply to appointed officials of which there are only three; the City Manager, City Attorney and City Clerk.

Commissioner Johnson stated that the resolution would apply to those two only.

Mayor Kelley suggested that the Attorney meet with Commissioner Johnson to get further clarification on the resolution.

Commissioner Holmes previously presented Attorney Bryan with a copy of the resolution when the City Attorney was hired; however, he would hold any comments on this matter until the City Attorney is present.

Additionally, he said he didn't have to tell the City Attorney to bring back a resolution for no contracts because Commissioner Johnson requested that; but he does have a copy available of the previous ordinance for no contracts and the ordinance rescinding it.

Mayor Kelley asked for an update on the issue with people renting homes and the concern Mrs. Skiles brought up at the last meeting.

Attorney Bryan deferred to the City Manager for a full report on this issue; but his understanding on this matter is that there is an active process in place.

Manager Finnie advised that there is an active process in place for a particular unit and relocating people.

Mayor Kelley stated that he is aware of the process the City Manager is working on but he asked the City Attorney to go one step further and look at what the city can do, if anything, as it relates to renting out property and Section 8.

Commissioner Johnson asked for the progress on the contracts with the employees; the police department and AFSCME?

Manager Finnie advised the city is currently in negotiations with AFSCME and PBA.

Commissioner Johnson asked, is the city going to be in violation for anything?

As far as AFSCME is involved, Manager Finnie stated that they have negotiated and initialed the document; however, there are some questions as to whether it was ratified by the members of the union and the process used to ratify what was agreed to.

Commissioner Johnson requested that the City Manager look into potential investment project in order to have a decent package to keep law enforcement personnel and provide for a decent salary. She said she would wait for the City Manager's reconstruction because she is concerned about the salaries of employees versus law enforcement officers and employee morale.

Mayor Kelley stated that the City Attorney was looking into having personnel from the police department remain with the city for a length of time but the Commission is still waiting on that information. By way of that, he stated that individuals who have applied for jobs, not technical skills type but maintenance type jobs, are not receiving any type of response after applying and all of a sudden the position is filled. Several jobs were available for maintenance, etc. and he believes the process when a person applies is that they get a call back or letter stating that they weren't selected. In his opinion, he had seen people who lived in the city not getting the opportunity at those jobs not even a returned call or letter and they can do those jobs just as good as someone else who might not live in the city.

He further stated that he would like for the city to figure out a way to employ residents of Opa-locka.

18. CITY CLERK'S REPORT:

Vice Mayor Taylor stated to the City Clerk that she would like to see the Nuisance Abatement Board active. A particular case came before the Commission at the last meeting which should have gone before the Nuisance Abatement Board.

Clerk Irby advised that she would schedule a meeting with the Nuisance Abatement Board during the first week in March.

She further reported that she is working on several different projects and the upcoming event is the Mayor's State of the City Address.

Commissioner Johnson requested a listing of all boards, board members and term of office to be provided to the Commission at least twice per year.

A while back, Vice Mayor Taylor stated that the boards were consolidated because there weren't enough people to serve. She asked, is that consolidation in place?

Clerk Irby replied, yes.

Vice Mayor Taylor suggested that the Commission be aware of what the consolidation is because she doesn't feel they are aware.

Mayor Kelley stated that the Commission is aware; however, what needs to occur is the appointments that are individual have to be made. Additionally, some of the boards meet on an as needed basis.

Vice Mayor Taylor asked that the City Clerk update her on the boards.

Commissioner Holmes thanked the City Clerk and staff for the excellent job on the Street Co-Designation of the Honorable Brian Hooten Street. He requested the City Clerk to make the arrangements to have Miami-Dade County put an additional sign on the corner of Codadad Street and Sharazad Boulevard.

Mayor Kelley asked, does the Miami Herald charge to place on a monthly basis all official city meetings?

Clerk Irby advised that there is a section in the Miami Herald that is free of charge.

Mayor Kelley directed the City Clerk to start placing that monthly listing in the Miami Herald.

19. MAYOR/COMMISSION REPORT:

Commissioner Holmes commended Starex Smith on the excellent job for the pavilion project at Sherbondy Park; however, the Commission must let him know what type of enclosure they would like to see either around the pavilion or around Historic City Hall.

He continued by thanking Christina Gordon for presenting him with a copy of the Japanese Documentary.

He further stated that he will not sit there and allow any union busting because he sponsored the resolution for the union back in the 90's for the employees. Before then, there wasn't a union in this city and the employees were being treated unfairly.

Commissioner Johnson reported that she is working on the Welcome Kit as well as the Educational Compact.

She announced that the planning meeting for the renaming of the street in honor of the Honorable Barack Obama will be held on January 29, 2009.

Additionally, she stated that she was asked to be the keynote speaker for the graduating class of 2009 for Miami Job Corps on January 30, 2009.

She further announced that she was recently certified as a Family Strengthening Implementation Trainer.

Mayor Kelley reported that the Florida Legislative Delegation is going to have a meeting downtown and they've asked for legislative packages. He directed the City Manager put together three or four priority projects to submit.

He further announced that the MLK Walk will take place on Saturday, January 17, 2009 at 9:00 a.m. starting at the Cultural Arts Center and the State of the City Address on Monday, January 26, 2009 at 7:00 p.m.

20. OFFICIAL BOARD APPOINTMENTS:

Mayor Kelley passed the gavel to Vice Mayor Taylor.

It was moved by Mayor Kelley, seconded by Commissioner Johnson to appoint Vilmaida Rodriguez to the Zoning Board of Appeals.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Commissioner Johnson	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes
Vice Mayor Taylor	Yes

Vice Mayor Taylor relinquished the gavel to Mayor Kelley.

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes to adjourn the meeting at 9:14 p.m.

MAYOR

ATTEST:

CITY CLERK